



CHAPTER xciii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Swansea Wombwell the West Kent Main Sewerage District and Leeds.

A.D. 1915.

[29th July 1915.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the First Schedule hereto under the provisions of the Public Health Act 1875 and the Public Health (Interments) Act 1879 the Provisional Orders set forth in the Second Schedule hereto under the provisions of the Public Health Act 1875 and the Provisional Order set forth in the Third Schedule hereto under the provisions of the Public Health Act 1875 and the Local Government Act 1888 :

38 & 39 Vict.
c. 55.
42 & 43 Vict.
c. 31.
51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as amended and set out in the schedules hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedules
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1915.

Short title..

A.D. 1915.

SCHEDULES.

THE FIRST SCHEDULE.

BOROUGH OF SWANSEA.

*Swansea
Order.*

*Provisional Order to enable the Urban Sanitary Authority for
the Borough of Swansea to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Burgesses of the Borough of
Swansea ;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of
Swansea acting by the Council as the Urban Sanitary Authority for
that Borough (herein-after referred to as "the Corporation") require to
purchase and take the lands described in the schedule hereto for the
following purposes that is to say :—

- (1) The lands described in Part I. of the said schedule for the
purposes of a cemetery ;
- (2) The lands described in Part II. of the said schedule for the
purpose of widening opening enlarging or otherwise
improving the streets known as Oystermouth Road Brynmill
Lane Eaton Road Llangyfelach Road Temple Street St. Helens
Road and Northampton Place :

38 & 39 Vict.
c. 55.
42 & 43 Vict.
c. 31.

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875
by Section 1 of the Public Health (Interments) Act 1879 and by any
other Statutes in that behalf do hereby order that from and after the
date of the Act of Parliament confirming this Order the following
provisions shall have effect that is to say :—

Compulsory
powers of
purchase.

Art. I. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto subject to the
continuance of existing public rights of highway (if any) and for the

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them. A.D. 1915.
Swansea Order.

Art. II. This Order may be cited as the Swansea Order 1915. Short title.

The SCHEDULE above referred to.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART I.				
Parish of COCKETT in the County of GLAMORGAN.				
3	Land - - -	Amy Cresser Tarr Amy Matilda Rosser The Right Honourable Ernest Ambrose Baron Swansea.	- - -	In hand.
4	Field and footpath	Lord Swansea Swansea Rural District Council Cockett Parish Council.	James Harris -	James Harris.
5	Ditto - - -	Ditto - - -	Ditto - - -	James Harris Swansea Rural District Council Cockett Parish Council.
6	Fields - - -	Lord Swansea -	Ditto - - -	James Harris.
7	Public highway (Sketty Lane) telegraph and telephone posts and wires.	Swansea Rural District Council The Postmaster-General.	- - -	Swansea Rural District Council The Postmaster-General.

Lord of the Manor His Grace the Duke of Beaufort K.G.

PART II.

Borough of SWANSEA.

1	Brynmill stream -	The Corporation -	Colonel William Llewellyn Morgan Captain Thomas Morgan Lord Swansea.	Lord Swansea.
2	Occupation road -	Ditto - - -	Ditto - - -	Ditto.
3	Land - - -	Ditto - - -	Ditto - - -	Ditto.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

Swansea
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
4	Public highway (Brynmill Lane) gas and water mains and sewers telegraph and telephone posts and wires.	The Corporation Swansea Gas Light Company The Postmaster-General.	- - -	The Corporation Swansea Gas Light Company The Postmaster-General.
5	Land - - -	The Corporation -	Colonel William Llewellyn Morgan Captain Thomas Morgan Lord Swansea.	Lord Swansea.
6	Public highway gas and water mains and sewers.	The Corporation Swansea Gas Light Company.	- - -	The Corporation Swansea Gas Light Company.
7	Public highway (Oystermouth Road) telegraph and telephone posts and wires gas and water mains sewers tramways rails and appurtenances.	The Corporation The Postmaster-General The Swansea and Mumbles Railway Limited Swansea Gas Light Company.	The Swansea Improvements and Tramways Company.	The Corporation Swansea Gas Light Company The Postmaster-General The Swansea Improvements and Tramways Company.
10	Land - - -	William John -	- - -	Sophia Bevan.
11	Occupation road -	Ditto - -	- - -	William John.
12	Dwelling-house and garden.	Ditto - -	- - -	Sophia Bevan.
13	Mission hall and buildings and garden or forecourt.	The Trustees of Ann Thomas deceased namely Walter Howard Joseph Davis.	The Trustees of Mount Calvary Baptist Mission namely Evan Evans Thomas Williams William Henry Renowden Edgar Davies George Arthur Truby Richard Steer William Wood David Jones.	The Trustees of Mount Calvary Baptist Mission (as before).
14	Forecourt dwelling-house shop garden stable and yard.	Ditto - -	David Jones -	David Jones
15	Dwelling-house and garden.	John Westacott Davies.	Mary Ann Hill -	Weekly tenant.
16	Ditto - -	Charles Marles -	Alfred Melbourne Squires.	Ditto.
17	Ditto - -	Ditto - -	Ditto - -	Ditto.
18	Ditto - -	Ditto - -	Ditto - -	Ditto.
19	Ditto - -	Ditto - -	Elizabeth Bennett.	Ditto.
20	Ditto - -	Ditto - -	Edward Smale -	Edward Smale.
21	Ditto - -	Ditto - -	Mary Jane Smith	Mary Jane Smith.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
22	Public highway (Freeman Street) gas and water mains.	The Corporation Swansea Gas Light Company.	- - -	The Corporation Swansea Gas Light Company.
23	Public highway (Eaton Road) telegraph and telephone posts and wires tramways rails and appurtenances gas water and electric mains sewers.	The Corporation Swansea Gas Light Company The Postmaster-General.	The Swansea Improvements and Tramways Company.	The Corporation Swansea Gas Light Company The Postmaster-General The Swansea Improvements and Tramways Company.
24	Public highway (Llangyfela ch Road) gas water and electric mains telegraph and telephone posts and wires and sewers.	Ditto - -	- - -	The Corporation Swansea Gas Light Company The Postmaster-General.
25	Dwelling-house and forecourt.	Rees Hopkins -	- - -	Weekly tenant.
26	Ditto - -	Ditto - -	- - -	Ditto.
27	Dwelling - house shop and forecourt.	Ditto - -	Rees Roberts -	Rees Roberts.
28	Dwelling - house forecourt and outhouses.	Whitta Davies -	- - -	Whitta Davies.
29	Shop and offices -	Capital and Counties Bank Limited.	Photo Supplies Limited.	Photo Supplies Limited Edward Austin Williams Mervyn Granville Williams W. F. Butcher and Sons Limited.
32	Public highway (Temple Street) telegraph and telephone posts and wires tramways rails and appurtenances gas water and electric mains sewers.	The Corporation Swansea Gas Light Company The Postmaster-General.	The Swansea Improvements and Tramways Company.	The Corporation The Swansea Improvements and Tramways Company Swansea Gas Light Company The Postmaster-General.
33	Public highway (St. Helen's Road) telegraph and telephone posts and wires tramways rails and appurtenances gas water and electric mains and sewers.	The Corporation The Swansea Improvements and Tramways Company Swansea Gas Light Company The Postmaster-General.	- - -	Ditto.

A.D. 1915
—
Swansea Order.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.
—
Swansea
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
34	Dwelling - house garden and out-houses.	William Frederick Brook.	- - -	William Frede- rick Brook.
35	Public highway (Newton Street) telegraph and telephone posts and wires gas water and electric mains and sewers.	The Corporation Swansea Gas Light Company The Postmaster-General.	- - -	The Corporation Swansea Gas Light Company The Postmaster-General.
36	Dwelling - house garden wall letter box and out-houses.	Colonel Raleigh Grey The Postmaster-General.	Louisa Draper Carrel Alexander William Cumming Cameron.	Alexander Wil- liam Cumming Cameron The Postmaster- General.

Lord of the Manor His Grace the Duke of Beaufort K.G.

Given under the Seal of Office of the Local Government Board
this Seventeenth day of May One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

THE SECOND SCHEDULE.

URBAN DISTRICT OF WOMBWELL.

Wombwell
Order.

*Provisional Order for partially repealing and altering
the Wombwell Local Board Gas Act 1879.*

To the Urban District Council of Wombwell; —

To the Rural District Council of Hemsworth; —

To the Parish Councils of each of the Townships of Great Houghton and Little Houghton; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Wombwell (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

*Wombwell
Order.*
42 & 43 Vict.
c. cxxiv.

Wombwell (herein-after referred to as "the District") and there are in force in the District the unrepealed provisions of the Wombwell Local Board Gas Act 1879 (herein-after referred to as "the Local Act") as altered by the Wombwell Order 1913 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1913 ;

3 & 4 Geo. 5.
c. cxxxi.

And whereas in pursuance of the Local Act the gas undertaking of the Wombwell and Darfield Gas Company became vested in the Wombwell Local Board who were the predecessors of the Council and by virtue of Section 4 of the Local Act the limits (herein-after referred to as "the gas limits of the Council") within which the Council may supply gas are the District and the Township of Darfield ;

And whereas by Section 28 of the Local Act it is provided that the price to be charged by the Council for gas supplied by them to consumers within the District shall not exceed five shillings and tenpence per thousand cubic feet and for gas supplied by them to consumers within the Township of Darfield shall not exceed six shillings and threepence per thousand cubic feet ;

And whereas by Sections 27 29 and 30 of the Local Act and the provisions of the Gasworks Clauses Act 1871 applied by the Local Act provision is made with regard to the quality and pressure of the gas supplied by the Council and the testing of the same ;

And whereas by Section 14 of the Local Act the Council are empowered amongst other things to manufacture sell provide supply let on hire and deal in coal coke tar pitch asphaltum ammoniacal liquor lime and all other products or residuum of any materials employed in or resulting from the manufacture of gas and also engines meters fittings tubes pipes gas-cooking apparatus and other articles and things in any way connected with gasworks or with the supply of gas ;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Act as altered as aforesaid in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Local Act as altered as aforesaid shall be partially repealed and altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I.—(1) The gas limits of the Council shall be extended so as to include the Townships of Great Houghton and Little Houghton in the Rural District of Hemsworth (herein-after referred to as "the added area").

Extension of
gas limits of
Council.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

*Wombwell
Order.*

(2) The provisions of the Local Act as altered as aforesaid and by this Order with respect to the supply of gas and otherwise with respect to gas purposes which apply and have effect within the existing gas limits of the Council shall with the necessary modifications apply and have effect within the gas limits of the Council as extended by this Order:

Provided that the price to be charged by the Council for gas supplied to consumers in the added area shall not exceed that charged to the like consumers within the Township of Darfield and shall not exceed by more than ninepence per thousand cubic feet that charged to the like consumers within the District.

For protec-
tion of Rural
District
Council of
Hemsworth.
10 & 11 Vict.
c. 15.

Art. II.—(1) Section 8 of the Gasworks Clauses Act 1847 as applied by or incorporated with the Local Act shall in relation to any road in the added area under the control or management of the Rural District Council of Hemsworth (herein-after referred to as "the Rural Council") have effect as if the word "seven" were substituted for the word "three" in that Section.

(2) Whenever the Council in pursuance of this Order or of any enactment applied by or incorporated with the Local Act shall have opened or broken up any road in the added area under the control or management of the Rural Council Section 10 of the Gasworks Clauses Act 1847 shall have effect as if the reinstatement and making good of the road required by that section included the application of a sufficient layer of surface metalling of the same specification as that employed by the Rural Council for the particular road and also included the use of a steam roller on the places where the road has been opened and broken up until the surface thereof has been made uniform with the unbroken surface adjoining the same to the satisfaction of the surveyor to the Rural Council.

(3) If the Rural Council at any time deem it necessary to raise sink or otherwise alter the situation of any gas pipe or gas main laid or placed by the Council in the added area in pursuance of this Order or of any enactment applied by this Order in under or upon any road under the control or management of the Rural Council the Rural Council may by notice in writing require the Council to raise sink or otherwise alter the situation of the said pipe or main in such manner and within such reasonable time as is specified in the notice and if the notice is not complied with the Rural Council may themselves make the alteration required and the reasonable expenses of or connected with any such alteration shall whenever there is sufficient ground for requiring the alteration be paid by the Council:

Provided that except in a case of necessity no such alteration shall be required or made as will permanently injure any such pipe

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

or main or prevent the gas from flowing as freely and conveniently as usual. A.D. 1915.

*Wombwell
Order.*

(4) If any difference arises at any time between the Rural Council and the Council with respect to any matter to which this Article relates the difference shall if either authority so require be determined by an arbitrator appointed by the Local Government Board.

Art. III. Section 29 of the Local Act shall have effect as if the words "a column of water not less than twelve tenths of an inch in height" were inserted therein instead of the words "from midnight to sunset a column of water not less than six tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight tenths of an inch in height." Pressure of gas.

Art. IV.—(1) Within six months from the commencement of this Order the Council shall provide at the testing place provided in pursuance of Section 30 of the Local Act apparatus for testing the calorific power of the gas supplied by them similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing the calorific value of gas. Substituting standard calorific power for prescribed illuminating power of gas.

(2) The gas supplied by the Council shall when tested in the mode and under the conditions for the time being prescribed by the Metropolitan Gas Referees be of a calorific power of five hundred and forty British thermal units (herein-after referred to as "the standard calorific power").

(3) Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power by more than seven and one-half per centum a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

(4) If on any testing the calorific power of the gas supplied by the Council is found to be below the standard calorific power by more than seven and one-half per centum the Council shall be liable to the following penalties in respect of any deficiency beyond such last-mentioned margin that is to say:—

If the deficiency does not exceed fourteen British thermal units a sum not exceeding two pounds:

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds:

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.
—
Wombwell
Order.

(5) For the purposes of the foregoing provisions the expression "British thermal units" means British thermal units gross per cubic foot of gas.

(6) The provisions of Section 12 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Council and Sections 28 to 31 and Section 33 of that Act shall in their application to the Council be construed as if calorific power were therein mentioned instead of illuminating power.

(7) Section 27 of the Local Act and so much of Section 30 thereof as prescribes the burner to be used for testing the gas are hereby repealed.

Insufficient
pressure &c.

Art. V. No penalty shall be incurred by the Council for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Council.

Supply of
gas fittings.

Art. VI.—(1) The Council may purchase or hire and sell or let on hire supply and otherwise deal in and fix set up alter remove and re-fix but shall not manufacture any gas fittings and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting supply fixing setting up altering removing or re-fixing of such gas fittings and for securing their safety and (if the circumstances so require) their return to the Council as may be agreed upon between the Council and the person to or for whom the said gas fittings are sold let supplied fixed set up altered removed or re-fixed.

(2) Any gas fittings let for hire under the provisions of this Article shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

(3) For the purposes of this Article the expression "gas fittings" includes any meter engine oven stove range pipe or burner or any other apparatus appliance article or thing used or intended or adapted to be used in or in connexion with the supply or consumption of gas for the purposes of lighting motive power heating and cooking or for any other purpose for which gas can or may be used.

(4) Section 14 of the Local Act shall be altered by the omission therefrom of all the words following the words "the manufacture of gas."

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

Art. VII.—(1) Subject as herein-after provided all fittings or apparatus of the Council which at the commencement of this Order have been or shall thereafter be let by the Council for hire under the provisions of the Local Act or of this Order shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Council.

A.D. 1915.
Wombwell
Order.

Fittings though fixed to premises to remain property of Council.

(2) The Council shall only be entitled to the privileges and exemptions conferred by this Article in respect of such fittings and apparatus as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Art. VIII. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council without paying to them all gas charges and meter rent and rent for gas fittings due from him to the Council they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse to supply persons in debt for other premises.

Art. IX.—(1) At least twenty-four hours' notice shall be given to the Council by every gas consumer either personally at the office for the time being of the Council or in writing before he quits any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur.

Gas consumers to give notice to Council before removing.

(2) Notice of the effect of this requirement shall be endorsed upon every demand note for gas charges payable to the Council.

Art. X.—(1) The Council may by notice in writing require a consumer of gas supplied by the Council and used for the working of an engine to fix and use an anti-fluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an anti-fluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair :

Authorising Council to require an anti-fluctuator to be used for controlling supply of gas to a gas engine.

If the consumer after any such notice as aforesaid fails to fix and use an anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Council may cease to supply him with gas.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

*Wombwell
Order.*

(2) The Council may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Council and for the purpose of ascertaining whether the anti-fluctuator is in proper order or repair may take off remove test inspect and replace the anti-fluctuator such taking off removing testing and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

(3) For the purposes of this Article an "anti-fluctuator" means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Period of
error in
defective
meters.

Art. XI.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Council.

Power to
supply gas
to premises
in private
streets.

Art. XII.—(1) For the purpose of the supply of gas by the Council on the application of the owner or occupier of premises within the gas limits of the Council as extended by this Order which abut on or are being erected in any street laid out but not dedicated to public use the provisions of the Gasworks Clauses Act 1847 with respect to the breaking-up of streets for the purpose of laying pipes shall apply to such street as if Section 7 of that Act were excepted from incorporation with the Local Act :

Provided that nothing in this Article contained shall apply to any street belonging to and forming the approach to any station or dépôt of a railway company (except with the consent of such company) nor shall the Council in carrying out such works unreasonably obstruct or interfere with the convenient access to any such street.

(2) Section 308 of the Public Health Act 1875 shall apply in respect of any damage sustained by any person by reason of the exercise by the Council of the powers of this Article as if the powers of this Article were powers of the said Act.

Art. XIII. The Council may within the District lay down place repair alter remove and renew mains pipes culverts and other apparatus for the purpose of procuring conducting or disposing of any oil tar or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as they are applicable extend and apply with the necessary modifications to the purposes of this Article.

A.D. 1915.

Wombwell
Order.

Power to lay down and utilise pipes for ancillary purposes.

Art. XIV. All the works executed and maintained in pursuance of the powers of this Order or the Local Act where the same will cross over or under or otherwise affect any railway or any part of the works or property of the Midland Railway Company or of the Dearne Valley Railway Company (both herein-after referred to as "the railway company") shall (except so far as it may be otherwise agreed between the railway company and the Council) be subject to the following conditions:—

For protection of Midland and Dearne Valley Railway Companies.

- (1) All such works shall (except in cases of emergency) be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the railway company and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this Article. Provided that if for twenty-one days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Council of his objections thereto he shall be deemed to have approved thereof:
- (2) If within twenty-one days after the receipt of any such plans and drawings the railway company give to the Council notice that they themselves desire to execute any part of the work (other than the actual laying down of the mains which shall be done by the Council) which will cross over or under any railway or work belonging to them the railway company may themselves execute such part of the work and recover the reasonable costs thereof from the Council:
- (3) All works which the Council may execute under this Article shall be so constructed as to cause no injury to the railways works and property of the railway company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

*Wombwell
Order.*

works any injury be caused to the said railways works and property or any interruption be caused to the traffic the Council shall make full compensation to the railway company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as herein-after provided :

- (4) The Council shall bear and on demand pay to the railway company the reasonable expense of the employment by the railway company during the execution of the work affecting their railways of a reasonable number of inspectors watchmen and signalmen to be appointed by the railway company for watching and signalling the same with reference to and during the execution of any such work of the Council and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors :
- (5) Any additional expense which the railway company may reasonably and properly incur in maintaining their railway bridges and works by reason of the existence of any mains or pipes of the Council laid under the powers of this Order across over or under such bridges or works shall be paid by the Council :
- (6) Any dispute or difference which may arise between the railway company and the Council with reference to the provisions of this Article or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the Board of Trade on the application of the railway company or the Council and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Short title.

Art. XV. This Order may be cited as the Wombwell Order 1915.

Given under the Seal of Office of the Local Government Board
this Seventeenth day of May One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

WEST KENT MAIN SEWERAGE DISTRICT.

A.D. 1915.

*Provisional Order for partially repealing and altering
certain Local Acts and Confirming Acts.*

*West Kent
Order.*

To the West Kent Main Sewerage Board ; —

To the Mayor Aldermen and Burgesses of the Borough of
Bromley ; —

To the Urban District Councils of Beckenham Bexley Chislehurst
Dartford Footscray and Sevenoaks ; —

To the Rural District Council of each of the Rural Districts of
Bromley Dartford and Sevenoaks ; —

To the Darenth Valley Main Sewerage Board ; —

And to all others whom it may concern.

WHEREAS by the West Kent Main Sewerage Act 1875 (herein-after 38 & 39 Vict.
referred to as "the Act of 1875") the West Kent Main Sewerage c. clxiii.
District (herein-after referred to as "the Sewerage District") was
constituted and the West Kent Main Sewerage Board (herein-after
referred to as "the Sewerage Board") was established and incorpo-
rated for the purpose of constructing and maintaining main sewers
and other works for the more effectual sewerage of parts of the
western portion of the County of Kent ;

And whereas the Act of 1875 has been partially repealed and
altered by the West Kent Main Sewerage (Amendment) Act 1876 39 & 40 Vict.
(herein-after referred to as "the Act of 1876") the West Kent Main c. lvii.
Sewerage (Amendment) Act 1877 (herein-after referred to as "the Act 40 & 41 Vict.
of 1877") the West Kent Main Sewerage (Amendment) Act 1879 c. lxxviii.
(herein-after referred to as "the Act of 1879") a Provisional Order of 42 & 43 Vict.
the Local Government Board dated the Second day of June One c. lxxviii.
thousand eight hundred and eighty-six which was confirmed by the
Local Government Board's Provisional Orders Confirmation (No. 7) Act 50 Vict. c. xv.
1886 (which Order and Act are herein-after respectively referred to as
"the Order of 1886" and "the Confirming Act of 1886") a Provisional
Order of the Local Government Board dated the Sixth day of June
One thousand eight hundred and eighty-seven which was confirmed by
the Local Government Board's Provisional Orders Confirmation (No. 5) 50 & 51 Vict.
Act 1887 (which Order and Act are herein-after respectively referred c. clxxix.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915. to as "the Order of 1887" and "the Confirming Act of 1887") and
 the West Kent Main Sewerage Order 1894 which was confirmed by
 the Local Government Board's Provisional Orders Confirmation (No. 18)
 Act 1894 (which Order and Act are herein-after respectively referred
 to as "the Order of 1894" and "the Confirming Act of 1894");

And whereas the Council of the Borough of Bromley the Urban District Councils of Beckenham Chislehurst Dartford and Footscray and the Rural District Council of Bromley are (subject as regards the Urban District Council of Dartford to two agreements dated respectively the Twenty-sixth day of May One thousand eight hundred and eighty-two and the Fourteenth day of November One thousand eight hundred and ninety and made between the predecessors of the said Council and the Sewerage Board) the Constituent Authorities (herein-after referred to as "the Constituent Authorities") of the Sewerage Board;

41 & 42 Vict. And whereas by Section 8 of the Local Government Board's
 c. ccxi. Provisional Order Confirmation (Darenth Valley) Act 1878 (herein-after referred to as "the Confirming Act of 1878") the Darenth Valley Main Sewerage Board are entitled subject as in the said section provided to have the sewage of their Sewerage District admitted into the sewer of the Sewerage Board and by Section 53 of the Act of 1875 the Sewerage Board are authorised to enter into and carry into effect such agreements as they think fit with any person as by that Act defined other than a constituent authority for the making by the Sewerage Board for the use or benefit of that person of a communication with or an opening or drain into a sewer of the Sewerage Board and the Sewerage Board have accordingly made agreements in pursuance of that section including agreements with the Urban District Council of Bexley and the Rural District Council of Dartford;

And whereas by Section 55 of the Act of 1875 as altered by Article III. of the Order of 1886 the Sewerage Board are authorised subject as provided in the said Article in any case where the occupier of a mill or work as defined by that Article (whether such mill or work and whether the drain or sewer into which any such mill or work discharges is situate within or without the district of any of the Constituent Authorities) uses a drain therefrom into any sewer of the Sewerage Board or into any drain or sewer communicating directly or indirectly with a sewer of the Sewerage Board to levy and recover summarily from such occupier a main sewer rate of an amount proportionate to the extent of the use which he thereby makes of the sewer of the Sewerage Board and to the benefit which he derives therefrom;

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

And whereas by Section 65 of the Act of 1875 Section 19 of the Act of 1877 and Section 13 of the Act of 1879 the Sewerage Board were authorised from time to time with the consent of the Local Government Board to borrow on the security of the contributions of the Constituent Authorities and of the other revenue of the Sewerage Board such moneys as they might think requisite not exceeding the sums specified in the said sections respectively and by each of the said Acts provision was made for the repayment of the moneys borrowed as aforesaid ;

A.D. 1915.
West Kent
Order.

And whereas the Sewerage Board have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Acts of 1875 1876 1877 and 1879 (herein-after together referred to as "the Local Acts") and the Confirming Acts of 1886 1887 and 1894 so far as they respectively relate to the Orders of 1886 1887 and 1894 (which Confirming Acts and Orders are herein-after together referred to as "the Confirming Acts" and "the Orders" respectively) in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Local Acts and the Confirming Acts so far as they respectively relate to the Orders shall be partially repealed and altered so that the following provisions shall have effect :—

Art. I. The following provisions shall apply to and have effect within the Sewerage District that is to say :—

(1) It shall not be lawful for any person—

(A) to throw or pass or permit or cause to pass into any sewer of the Sewerage Board or into any sewer or drain communicating directly or indirectly therewith—

Prohibiting
passage of
injurious
matters into
sewers.

(i) any matter or substance by which the free flow of the sewage may be interfered with or by which any such sewer may be injured ;

(ii) any chemical refuse or any waste steam condensing water heated water or other liquid (such water or other liquid being of a higher temperature than one hundred and ten degrees of Fahrenheit) which either alone or in combination with the sewage causes a nuisance or is dangerous or injurious to health ;

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

*West Kent
Order.*

(iii) any petroleum or any produce of or residue from petroleum or any liquid or substance giving off or liable to give off inflammable vapour; or

(B) to lift the cover of any sewer or otherwise make an emergency entrance to any sewer for the purpose of admitting storm waters to any sewer of the Sewerage Board or to any sewer or drain communicating directly or indirectly therewith without the express authority of the Sewerage Board:

Penalties.

(2) Every person offending against the provisions of subdivision (1) of this Article shall be liable to the following penalties—

(A) in respect of an offence against the provisions of paragraph (A) of the said subdivision a penalty not exceeding ten pounds and a daily penalty not exceeding twenty shillings; and

(B) in respect of an offence against the provisions of paragraph (B) of the said subdivision a penalty not exceeding ten pounds:

(3) For the purposes of subdivision (2) of this Article the expression “daily penalty” means a penalty for each day on which any offence is continued after conviction therefor.

Requiring
notice of
communica-
tion of drains
to be given
to Sewerage
Board.

Art. II.—(1) In every case in which in pursuance of Section 21 of the Public Health Act 1875 and of any regulations made thereunder any Urban or Rural District Council whether a Constituent Authority or not whose sewers or any part thereof communicate either directly or indirectly with any sewer of the Sewerage Board receives from the owner or occupier of any mill or work to which Section 55 of the Act of 1875 as altered by Article III. of the Order of 1886 applies notice of his intention to cause the drain from such mill or work to empty into any such sewer the Urban or Rural District Council as the case may be shall within three days of the receipt of the notice inform the Sewerage Board in writing of the notice and of the name and address of the owner or occupier and the situation of the mill or work.

(2) In every case in which it is proposed that a communication shall be made directly between a drain from any mill or work to which Section 55 of the Act of 1875 as altered by Article III. of the Order of 1886 applies and any sewer of the Darent Valley Main Sewerage Board that Board shall within three days of the receipt of the proposal inform the Sewerage Board in writing of the proposal and of the name and address of the owner or occupier and the situation of the mill or work.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

Art. III. Section 55 of the Act of 1875 as altered by Article III. of the Order of 1886 shall be further altered so as to empower the Sewerage Board in any case where a drain from any mill or work to which the provisions of that Section as altered as aforesaid apply is after the commencement of this Order connected directly or indirectly with a sewer of the Sewerage Board without notice of such connexion previously given to the Sewerage Board to levy and recover from the occupier of any such mill or work a main sewer rate as from the date of such connexion. Provided that no such rate shall be levied in respect of a period exceeding two years prior to the date on which the rate is made.

A.D. 1915.
West Kent Order.
 Empowering Sewerage Board to levy main sewer rate retrospectively.

Art. IV. Any person duly appointed for the purpose by the Sewerage Board and exhibiting his appointment if required so to do may at all reasonable hours of the day or night enter any mill or work to which Section 55 of the Act of 1875 as altered by Article III. of the Order of 1886 applies for the purpose of ascertaining whether any water used in or refuse resulting from any process carried on therein is being discharged into a sewer of the Sewerage Board or into a sewer communicating directly or indirectly with any sewer of the Sewerage Board and the volume and the nature of the water or refuse so being discharged and if such person at any such time be refused admittance into such premises for the purposes aforesaid or be prevented from making such examination the occupier of such premises shall be guilty of an offence against this Order and shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to enter and inspect.

Art. V. The Sewerage Board may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the contributions of the Constituent Authorities and of the other revenue of the Sewerage Board such sums as may from time to time be required for the purpose of carrying on the works and undertaking of the Sewerage Board in addition to the sums which they are already authorised to borrow as aforesaid.

Additional borrowing powers.

Art. VI. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Sewerage Board and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Local Loans Act and certain provisions of Public Health Act made applicable.

Art. VII. The moneys borrowed under Article V. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Sewerage Board with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed

Period for repayment of borrowed moneys.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915. period" and shall with reference to the repayment of those moneys be
 West Kent the prescribed period for the purposes of this Order and of the Local
 Order. Loans Act 1875.

Mode of Art. VIII.—(1) The Sewerage Board shall repay the moneys borrowed
 repayment. under this Order (other than moneys borrowed under the provisions
 of the Local Loans Act 1875) by equal annual instalments of principal
 or by equal annual instalments of principal and interest combined
 or by means of a sinking fund or partly by one of those methods
 and partly by another or the others of them.

Formation (2) Subject to the provisions of Article IX. of this Order if the
 maintenance Sewerage Board determine to repay by means of a sinking fund any
 and applica- moneys borrowed under this Order the sinking fund shall be formed
 tion of sink- and maintained either—
 ing fund.

(A) by payment to the fund throughout the prescribed period of
 such equal annual sums as will together amount to the
 moneys for the repayment of which the sinking fund is
 formed A sinking fund so formed is herein-after called a
 non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of
 such equal annual sums as with accumulations at a rate
 not exceeding three pounds per centum per annum will be
 sufficient to pay off within the prescribed period the moneys
 for the repayment of which the sinking fund is formed
 A sinking fund so formed is herein-after called an accumu-
 lating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an
 accumulating sinking fund the interest on the investments of the
 sinking fund shall unless applied in repayment of the loan in respect
 of which the sinking fund is formed be immediately invested in
 securities in which trustees are by law for the time being authorised
 to invest or in mortgages bonds debentures debenture stock stock or
 other securities (not being annuity certificates or securities payable to
 bearer) duly issued by any local authority as defined by Section 34 of
 the Local Loans Act 1875 but exclusive in every case of the securities
 of the Sewerage Board and the Sewerage Board shall be at liberty
 from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on
 the investments of the fund may be applied by the Sewerage Board
 towards the equal annual payments to the fund.

(5) The Sewerage Board may at any time apply the whole or any
 part of any sinking fund in or towards the discharge of the moneys for

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Sewerage Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied, if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1915.
 —
West Kent
Order.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Sewerage Board :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Sewerage Board in addition to the payments provided for by this Order.

Art. IX. — (1) If it appears to the Sewerage Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Sewerage Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Sewerage Board shall increase the payments to such extent as the Local Government Board may direct.

Increase re-
 duction or
 discontinu-
 ance of pay-
 ments to
 sinking fund.

(2) If the Sewerage Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Sewerage Board may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Local Government Board approve.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.
 —
*West Kent
 Order.*

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Sewerage Board may with the consent of the Local Government Board discontinue the equal annual payments to the sinking fund until the Local Government Board otherwise direct.

Surplus of
 sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Sewerage Board with the consent of the Local Government Board may determine.

Power to re-
 borrow.

Art. X.—(1) The Sewerage Board shall have power—

(A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Sewerage Board in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Sewerage Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Sewerage Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application
 of borrowed
 moneys.

Art. XI. All moneys from time to time borrowed under this Order shall be applied by the Sewerage Board only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

shall be applied in such manner as the Sewerage Board with the approval of the Local Government Board determine. A.D. 1915.
West Kent
Order.

Art. XII.—(1) Subject to the provisions of this Article any mortgagee of the Sewerage Board in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. XIII.—(1) Section 71 of the Act of 1875 Section 24 of the Act of 1877 and Section 20 of the Act of 1879 are hereby repealed. Repeal of
sections of
Local Acts.

(2) The clerk to the Sewerage Board shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of the Local Acts or of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may from time to time be prescribed by the Local Government Board and if required by the Local Government Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court. Return as to
provision for
repayment of
debt.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

*West Kent
Order.*

(3) If it appears to the Local Government Board by that return or otherwise that the Sewerage Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by any of the Local Acts or this Order or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Local Government Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

*Inquiries and
expenses.*

Art. XIV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Acts or this Order the costs incurred by the Local Government Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Local Government Board may determine for the services of any inspector or officer of the Local Government Board engaged in the inquiry) shall be paid by the Sewerage Board and the Local Government Board may certify the amount of the costs so incurred and any sum so certified and directed by the Local Government Board to be paid by the Sewerage Board shall be a debt due to the Crown from the Sewerage Board.

*Legal pro-
ceedings &c.*

Art. XV. Offences against the provisions of Articles I. and IV. of this Order and penalties forfeitures costs and expenses imposed payable or recoverable under the said provisions may be prosecuted and recovered in a summary manner and any person deeming himself aggrieved by any conviction or order made by a court of summary jurisdiction under the provisions of this Order may appeal to the next practicable court of quarter-sessions under and according to the provisions of the Summary Jurisdiction Acts Provided that action shall not be taken by the Sewerage Board in pursuance of the provisions of the said Articles with regard to any offence in respect of which action has already been taken by any of the Constituent Authorities acting in pursuance of powers exerciseable by them by virtue of any general or local Act in force in their district.

*Consent of
Treasury to
borrowing
during war.*

Art. XVI. Notwithstanding anything in this Order the Sewerage Board shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Short titles.

Art. XVII. This Order may be cited as the West Kent Main Sewerage Order 1915 the Order of 1886 may be cited as the West

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

Kent Main Sewerage Order 1886 the Order of 1887 may be cited as A.D. 1915.
the West Kent Main Sewerage Order 1887 and the Orders and this *West Kent*
Order may be cited together as the West Kent Main Sewerage Orders *Order.*
1886 to 1915.

Given under the Seal of Office of the Local Government Board
this Seventeenth day of May One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary:

THE THIRD SCHEDULE.

CITY OF LEEDS.

Provisional Order for partially repealing and altering *Leeds Order.*
the Leeds Corporation (Consolidation) Act 1905 and the Local
Government Board's Provisional Orders Confirmation
(No. 12) Act 1912.

To the Lord Mayor Aldermen and Citizens of the City of
Leeds;—

And to all others whom it may concern.

WHEREAS the City of Leeds (herein-after referred to as "the City")
is an Urban Sanitary District of which the Lord Mayor Aldermen and
Citizens acting by the Council (herein-after referred to as "the Corpo-
ration") are the Urban Sanitary Authority;

And whereas the unrepealed provisions of the Leeds Corporation 5 Edw. 7.
(Consolidation) Act 1905 (herein-after referred to as "the Local Act") c. i.
as altered by the Leeds (Extension) Order 1912 (herein-after referred
to as "the Order") which was confirmed by the Local Government 2 & 3 Geo. 5.
Board's Provisional Orders Confirmation (No. 12) Act 1912 (herein-after c. cxxxviii.
referred to as "the Confirming Act") and of certain other Local Acts
and certain other Provisional Orders confirmed by Parliament are in
force in the City;

And whereas by Sections 277 278 and 280 of the Local Act
provision is made for the continuation or establishment by the Corpo-
ration of a consolidated fund and for the keeping of a highway
account (herein-after respectively referred to as "the consolidated
fund" and "the highway account") and for the making and levying
of a consolidated rate and highway rate (herein-after respectively
referred to as "the consolidated rate" and "the highway rate") for
the purpose of defraying certain expenses incurred by the Corporation;

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915. And whereas by Sections 281 to 297 inclusive of the Local Act
Leeds Order. further provision is made as therein mentioned with respect to the making assessing collecting and levying of the consolidated rate and the highway rate and with respect to appeals against and to recovery of any such rate;

8 & 9 Vict.
c. 18. And whereas by Section 298 of the Local Act the Corporation were empowered to make an order on the overseers of any township comprised in the City requiring them to assess levy or collect the consolidated rate and the highway rate and the overseers if they are required to collect the highway rate are empowered to pay the amount required by the Corporation in respect of the highway rate out of the poor rate and accordingly to make the necessary increase in the poor rate but it is provided that for the purpose of Section 133 of the Lands Clauses Consolidation Act 1845 so much of the poor rate as is raised for the purpose of the highway rate shall not be deemed to form part of the poor rate;

And whereas by the said Section 298 and by Section 299 of the Local Act provision is made with respect to the auditing of the accounts of the overseers assistant overseers and collectors relating to any rate to be levied and collected by them pursuant to the provisions of the said Section 298 and with respect to the remuneration of any assistant overseers and collectors engaged in the collection of any such rate;

And whereas by Section 279 of the Local Act it is provided subject as therein mentioned that as regards the consolidated rate and as regards any increase or addition to the city rate for gas or water purposes the owner of any tithes or of any tithe commutation rent-charge or the occupier of any land used as arable meadow or pasture ground or as woodlands market gardens orchards allotments or nursery grounds and the occupier of any land covered with water or used only as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed in respect of such property in the proportion of one-fourth only of the net annual value thereof;

And whereas by Article XXIII. of the Order of 1912 provision is made with respect to the differential rating during a period of fifteen years from the Ninth day of November One thousand nine hundred and twelve of any hereditament in the areas added to the City and to the Township of Leeds by the Order any deduction necessary to give effect to such differential rating to be made as therein provided from the consolidated rate or from the highway rate;

And whereas the city rate for the City is assessed and levied with and as part of the poor rate;

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

And whereas by Section 360 of the Local Act the Corporation are empowered as therein mentioned to grant at their discretion a superannuation allowance or gratuity to any officer (other than a police officer) or servant of the Corporation and the Corporation propose to establish and contribute towards a fund for the encouragement of thrift amongst their officers and servants;

A.D. 1915.
Leeds Order.

And whereas by the Local Act the Corporation are empowered to manufacture and supply gas and by Section 46 of that Act provision is made with respect to rebates to consumers of gas in large quantities and with respect to discounts on gas rents;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Act and the Confirming Act so far as it relates to the Order in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by Section 59 of the Local Government Act 1888 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act so far as it relates to the Order shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.
51 & 52 Vict.
c. 41.

Art. I. Articles II. to VIII. inclusive of this Order shall come into operation from and after the Thirty-first day of March One thousand nine hundred and sixteen.

Date of operation for certain provisions of Order.

Art. II.—(1) Sections 277 to 281 and 283 to 298 and Section 300 of the Local Act shall be repealed.

Repeal and alteration of certain provisions of Local Act and Order.

(2) Section 282 of the Local Act shall apply and have effect as if for the words “make under this Act” there were substituted therein the words “order make or assess” and as if there were omitted therefrom all the words following the words “exercised by the Corporation.”

(3) Article XXIII. of the Order shall apply and have effect as if the words “all rates including” and the first proviso thereto were omitted therefrom.

Art. III. — (1) All expenses of the Corporation which if this Order had not been made would have been payable out of and all rates charges damages penalties and other moneys which if this Order had not been made would have been paid or carried to the credit of the consolidated fund or the highway account and highway rate as the case may be shall be charged on and defrayed out of or paid and carried to the credit of the city fund and the city rate and in any case for which no specific provision is made in this Order any reference to the consolidated fund the consolidated rate the highway account or

Abolition of consolidated fund and highway account and rates.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915. the highway rate in any Local Act or Provisional Order in force in
Leeds Order. the City shall be deemed to be a reference to the city fund and the
city rate.

(2) The consolidated fund and the highway account shall be closed and any balance which on the date of the operation of this Article is standing to the credit or to the debit of the consolidated fund and the highway account or the highway rate respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the city fund and any moneys owing to the Corporation in respect of or in connexion with the consolidated fund or consolidated rate or the highway account or highway rate shall notwithstanding the provisions of this Order continue to be payable to and recoverable by the Corporation as if this Order had not been made and when received by the Corporation shall be carried to the credit of the city fund.

(3) Any assistant overseer collector of poor rates or other officer who at the date of the operation of this Article is engaged in collecting the poor rates in any parish or township comprised within the City and is in receipt of additional remuneration from the Corporation for the collection of any rate levied under the provisions of the Local Act or for the collection of any increase in the poor rate by reason of that Act shall so long as he is engaged in collecting the poor rate be entitled to and shall continue to receive the remuneration which he would have received if this Order had not been made.

Differential
rate in
certain cases.

Art. IV. The following provisions shall have effect with respect to city rates (which expression shall include such part of any poor rate as may be made by the overseers of any parish or township within the City for the purpose of paying the contributions of the parish or township to the city rate) to be ordered made or assessed by the Corporation that is to say:—

(1)—(a) The owner of any tithes or of any tithe commutation rent-charge or the occupier of any land used as arable meadow or pasture ground or as woodlands market gardens orchards allotments or nursery grounds and the occupier of any land covered with water or used only as a canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall (save and except in the cases and to the extent to which the provisions of paragraph (b) of this subdivision apply and subject to subdivision (2) of this Article) be assessed to the city rate in respect of such hereditaments in the proportion of thirteen twenty-fifths of the net annual value thereof;

(b) The occupier of any agricultural land to which Section 1 of the Agricultural Rates Act 1896 applies shall

subject to the provisions of subdivision (3) of this Article be assessed to the city rate in respect of such land in the proportion of two-thirds of the net annual value thereof: A.D. 1915.
Leeds Order.

(2) If any part of any city rate shall be levied for the purpose of meeting any increase or addition to such rate for gas or water purposes there shall be allowed in respect of such purpose to any such owner of tithes or tithe commutation rentcharge and to any such occupier of land covered with water or used in the manner referred to in paragraph (a) of subdivision (1) of this Article a rebate or allowance equal in respect of any such land to which Section 1 of the Agricultural Rates Act 1896 applies to one-fourth and in respect of any such tithes or tithe commutation rentcharge and of any such land to which the last-mentioned section does not apply to twenty-seven fifti-seconds of the amount levied upon such owner or occupier and such amount may be recovered by action or may be deducted out of the next or any subsequent rate to which he may be liable: 59 & 60 Vict. c. 16.

(3) During the operation of Article XXIII. of the Order the following provisions shall have effect in lieu of the provisions of paragraphs (a) and (b) of subdivision (1) of this Article in the areas mentioned in the said Article XXIII. that is to say:—

The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground or as woodlands market gardens orchards allotments or nursery grounds and the occupier of any land covered with water or used only as a canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the city rate in respect of such hereditaments as follows:—

If situate in the area in the said Article described as	Being hereditaments to which Section 1 of the Agricultural Rates Act 1896 does not apply.	Being hereditaments to which Section 1 of the Agricultural Rates Act 1896 applies.
The area of the existing Township of Roundhay or the area of the existing Township of Shadwell.	In the proportion of Three-fourths of the net annual value.	In the proportion of Seventeen-twentieths of the net annual value.
The area of the existing Township of Seacroft.	In the proportion of Seventeen - twentieths of the net annual value.	In the proportion of Nine-tenths of the net annual value.
The added part of Barwick-in-Elmet.	Upon the net annual value.	Upon the net annual value.

[Ch. xciii.] *Local Government Board's* [5 & 6 Geo. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.
Leeds Order.
 Contributions to city
 rate.
 45 & 46 Vict.
 c. 50.

Art. V.—(1) In the application to the city rate of the provisions of Section 144 of the Municipal Corporations Act 1882 the following modifications shall be made and have effect:—

(a) The estimate made under subsection (1) of the said Section shall show as far as practicable—

(i) The several amounts required for each of the several purposes for which the city fund may be insufficient; and

(ii) The annual value of the property assessable;
 and the estimate so made shall be transmitted by the Corporation to the overseers of the several parishes or townships in the City and be by them entered in the rate book in which any rate of which any part shall be raised for the purposes of such estimate is entered and shall be kept at the several rate offices open to public inspection during office hours thereat but it shall not be deemed part of the rate nor in any respect affect the validity of the same:

(b) In ascertaining the total annual value of the hereditaments in each parish or township or part thereof for the purposes of subsection (4) of the said Section the annual value of any hereditament referred to in Article IV. of this Order shall be deemed to be the amount at which such hereditament is required by the said Article to be assessed to the city rate.

(2) Section 146 of the Municipal Corporations Act 1882 shall with the necessary modifications apply and have effect in relation to the city rate as if the Township of Leeds and each of the areas mentioned in Article XXIII. of the Order and the remainder of such Township and each of the other parishes or townships within the City were a parish partly in and partly out of the City:

Provided that the amount of contribution to the city rate to be assessed on the areas mentioned in the said Article shall be deemed to be and shall be such amounts respectively as shall be provided from the proceeds of rates levied as provided by the said Article as amended by this Order and the balance of any city rate to be made for the City after deducting therefrom the said contributions shall be assessed as if such balance were a city rate for the City as it existed immediately prior to the Ninth day of November One thousand nine hundred and twelve.

Application of
 Order to Sec-
 tion 133 of Lands
 Clauses Consoli-
 dation Act 1845.

Art. VI. For the purposes of Section 133 of the Lands Clauses Consolidation Act 1845 the city rate for any one year levied in any of the several parishes or townships within the City shall be deemed

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

to include the sum of two shillings in the pound for the poor's rate within the meaning of that section. A.D. 1915.
Leeds Order.

Art. VII.—(1) If the owner or occupier of any hereditament which is by Article IV. of this Order directed to be assessed to the city rate at less than the net annual value thereof thinks himself aggrieved by any rate or assessment made under the provisions of this Order or by such part of any poor rate as may be made by the overseers of any parish or township for the purpose of paying the contributions of the parish or township to the city rate he may appeal therefrom to the next practicable Quarter Sessions for the City under and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such Quarter Sessions unless seven days' notice in writing of such appeal and of the ground thereof be given by the appellant to the Corporation and also to the overseers of the poor of the parish or township in which the hereditaments affected are situate. Appeals.

(2) On appeals under this Order against any rate the court to which such appeal shall be made shall have the same power to amend or quash any rate or assessment and to award costs between the parties to the appeal as is or may by law be vested in any court of Quarter Sessions with respect to amending or quashing any rate or assessment or awarding costs on appeals with respect to rates for the relief of the poor and the costs awarded by the said court under this Order may be recovered in the same manner in all respects as costs awarded on the last mentioned appeals. Provided that notwithstanding the quashing of any rate appealed against all moneys charged by such rate shall if the said court think fit so to order be levied as if no appeal had been made and such moneys when paid shall be taken as payment on account of the next effective rate for the purposes in respect of which the quashed rate was made.

Art. VIII. The city rate and the demand note and any other necessary documents to be used for the purposes of or in connexion with the city rate shall be in such form as the Local Government Board may from time to time prescribe. Form of rate
&c. to be
prescribed by
Board.

Art. IX. The Corporation may by resolution establish a thrift fund in accordance with the provisions of the scheme set forth in the Schedule to this Order and shall by the resolution fix the date upon which the scheme shall come into operation. Provided that the Corporation may at any time with the consent of the Local Government Board vary or alter any of the said provisions. Authorising
establish-
ment of
Thrift Fund.

Art. X.—(1) Section 46 of the Local Act shall be repealed.

(2) So much of Section 5 of the Local Act as relates to the incorporation with the Local Act of the Gasworks Clauses Act 1847 Repealing and
altering pro-
visions of Local
Act in respect
of gas.

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915. and the Gasworks Clauses Act 1871 shall apply and have effect as if
Leeds Order. the following provision were added thereto that is to say:—

“ Provided that Section 13 of the Gasworks Clauses Act
“ 1847 shall be read as if the words ‘or any premises’ were
“ inserted after the words ‘private building’ and as if the
“ words ‘Provided that every such contract entered into by the
“ ‘Corporation shall be alike in terms and amount under like
“ ‘circumstances to all consumers’ were added at the end of
“ that section.”

Short title. Art. XI. This Order may be cited as the Leeds (Rating &c.)
Order 1915.

The SCHEDULE above referred to.

THRIFT FUND.—SCHEME.

1. Except as provided in Clause 21 and subject to Clause 22 of this Schedule every officer and servant of the Corporation who shall give notice of his intention to become a contributor to the Thrift Fund established in accordance with the provisions of this Schedule (herein-after referred to as “the Fund”) shall contribute and pay and be liable to contribute and pay to the Fund whilst in the service of the Corporation three and three-quarters per centum (disregarding fractions of a penny) of his actual salary or wages for the time being such contributions and payments to be deducted pro rata by the Corporation from time to time as and when the salary or wages shall become payable and to be paid by the Corporation into the Fund and no such contributor shall cease so to contribute to the Fund so long as he remains in the service of the Corporation.

2. The Corporation shall from time to time pay into the Fund to the account of each contributor sums equal to the contributions from time to time contributed and paid to the Fund by such contributor.

3. A person who shall be in the service of the Corporation at the date upon which this scheme comes into operation shall exercise his option to become a contributor to the Fund within five years from such date.

4. A person who shall enter the service of the Corporation after the date upon which this scheme comes into operation shall within three calendar months from the date upon which he enters the service of the Corporation exercise his option to become a contributor to the Fund.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xciii.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.
Leeds Order.

5. The Fund shall be invested in securities of the Corporation and the interest thereon shall be at the rate of three and a half per centum per annum and shall be paid into the Fund half-yearly on the Thirtieth day of June and the Thirty-first day of December in each year.

6. For the purposes of this scheme a contributor shall retire from the service of the Corporation on attaining the age of sixty-five years or in any case in which the Corporation are satisfied that he is incapacitated for the performance of his duty by infirmity of mind or body at an earlier age. Provided that the Corporation may by special resolution retain in their service after the age of sixty-five years any contributor who shall have been in the service of the Corporation at the date upon which this scheme comes into operation in which case such contributor shall continue his contributions and the Corporation shall continue to contribute in respect of him and he shall on retiring thereafter be entitled in any event to an allowance not less than that to which he would have been entitled if he had retired at the age of sixty-five years instead of continuing in the service of the Corporation and the right to receive such allowance shall not be liable to forfeiture.

7. An account shall be kept by the Committee of Management herein-after mentioned in respect of each contributor to the Fund.

8. In the event of the retirement of a contributor from the service of the Corporation on or after his attaining the age of sixty-five years or with the consent of the Corporation on or after his attaining the age of sixty years or by reason of incapacity as hereinbefore prescribed he shall be entitled to receive the whole amount then standing to his credit including all contributions of the Corporation on his account and interest at the rate of three and a half per centum per annum on his own contributions and on the contributions of the Corporation on his account.

9. If a contributor who shall not have been guilty of fraud dishonesty or misconduct involving pecuniary loss to the Corporation in respect of which he shall have been prosecuted and convicted shall die before he becomes entitled to any benefit under this scheme on resignation or retirement his legal representative shall be entitled to receive the amount then standing to his credit in respect of his own contributions and of the contributions of the Corporation on his account together with interest at the rate of three per centum per annum on his own contributions and on the contributions of the Corporation on his account.

10. Any contributor retiring from the service of the Corporation of his own accord before becoming entitled to receive payment under Clause 8 hereof and not to escape dismissal for fraud dishonesty or

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915. misconduct involving pecuniary loss to the Corporation in respect of
Leeds Order. which he shall have been prosecuted and convicted or leaving the
service of the Corporation in consequence of reductions or alterations
in the establishment or from his services being discontinued from any
cause other than such fraud dishonesty or misconduct involving pecuniary
loss to the Corporation shall be entitled to receive the whole amount
of his own contributions together with interest thereon at three per
centum per annum and shall have no further claim upon the Fund.

11. Any contributor dismissed from the service of the Corporation
for fraud or dishonesty or for misconduct involving pecuniary loss to
the Corporation in respect of which he shall have been prosecuted and
convicted or retiring to escape dismissal for any of those causes shall
at the discretion of the Committee of Management forfeit all or any of
his contributions and the interest thereon and lose all benefits from
the Fund except such payment (if any) as may at such discretion be
made to him in respect of his own contributions and interest thereon
at three per centum per annum.

12. In case of the long illness of a contributor the Committee of
Management at their discretion may make an advance out of the Fund
to such contributor of an amount not exceeding one-fourth of the sum
standing to his credit in respect of his own contributions but no second
advance shall be made until the first with interest at three and a half
per centum per annum shall be repaid by such contributor to the Fund.

13. If a contributor to the Fund on becoming entitled to receive
payment of any sum out of the Fund appears to the Committee of
Management to be insane or otherwise incapacitated the Committee of
Management may instead of paying such sum in gross to such con-
tributor either (a) apply the same in the purchase of an annuity in
favour of such contributor from any insurance company whereupon
all liability of the Committee of Management shall cease or (b) pay
such sum by such instalments thereof from time to time as the Com-
mittee of Management in their absolute discretion may think fit to
any institution or person having the care of such contributor or towards
the maintenance and benefit of the wife or children of the contributor.

14. In every case where the legal representative of a deceased
contributor becomes entitled to receive the amount standing to the
credit of such contributor the Committee of Management may instead
of paying such amount in gross pay the same by such instalments
thereof from time to time as they may in their absolute discretion
think fit.

15. The Committee of Management shall have power to enter into
agreement with any person who shall have become entitled to receive
payment of any sum from the Fund whether as a contributor or

as the legal representative of a deceased contributor for the application of such sum in such manner as may from time to time be agreed between the Committee and the contributor or the legal representative of a deceased contributor as the case may be. A.D. 1915.
Leeds Order.

16. The amount for the time being standing to the credit of a contributor to the Fund during the continuance of his service with the Corporation shall not be assignable or chargeable with his debts or other liabilities and shall not pass on his bankruptcy to any trustee or other person acting on behalf of the creditors.

17. Subject to the provisions of Clause 18 hereof the expenses connected with the administration and investment of the Fund shall be paid out of the city rate.

18. Any sum standing to the credit of any contributor whether in respect of his own contributions or of the contributions of the Corporation or of the interest thereon which shall not be payable to such contributor from any cause shall be applied as follows:—

- (1) In repayment to the Corporation of any sums paid out of the city rate towards the expenses connected with the administration of the Fund:
- (2) In re-payment to the Corporation of the amount of any pecuniary loss sustained by them owing to the dishonesty of any contributor who shall have been dismissed for fraud or dishonesty or for misconduct involving pecuniary loss to the Corporation in respect of which he shall have been prosecuted and convicted or who shall have retired to escape dismissal for any of those causes.

19. The Fund shall be managed and directed by a Committee of Management consisting of twelve members six to be appointed by the Corporation and six to be appointed by the contributors one of which last-mentioned number shall be appointed by the teachers three by the officials and clerical staff other than teachers and two by the workmen and such Committee shall have power if they think fit to appoint from time to time a sub-committee or sub-committees for the purpose of such management and direction.

20. The moneys and securities of the Fund shall be vested in three Trustees to be appointed by the Committee of Management.

21. This Scheme shall not apply to—

- (a) A person who is not or shall not be in the exclusive continuous or permanent service of the Corporation; or
- (b) A person who is paid and receives salary or wages at the rate of or exceeding four hundred pounds per annum; or

[Ch. xciii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1915.

A.D. 1915.

Leeds Order.

(c) A person whose service is or shall be of a probationary or temporary character and is or shall be so styled ; or

(d) A member of the police force or fire brigade maintained by the Corporation ;

but shall apply to teachers who are permanently and exclusively employed by the Corporation as the local education authority for the City or are permanently and exclusively employed in any public elementary school in the City (whether provided by the Corporation as the local education authority or not).

22.—(1) Any teacher entitled to superannuation under the Elementary School Teachers (Superannuation) Acts 1898 to 1912 or any statutory modification thereof who elects to become a contributor to the Fund shall only be liable or entitled to contribute to the Fund upon such part of his or her salary as exceeds in the case of a male one hundred and thirty pounds per annum and in the case of a female one hundred pounds per annum.

(2) No part of any benefit or allowance received by any teacher from the Fund shall be deemed to be paid out of or received from public money within the meaning of the Elementary School Teachers (Superannuation) Acts 1898 to 1912 or any rules made thereunder or otherwise.

23. In this scheme interest (except in Clause 5) means compound interest calculated by half-yearly rests.

24. This scheme may be cited as the Leeds Thrift Fund Scheme.

Given under the Seal of Office of the Local Government Board
this Fifteenth day of May One thousand nine hundred and
fifteen.

(I.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

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